

to have enforcement intent. Minnesota argues that the district court erred when it transferred the Governor's enforcement intent to the Attorney General.

Under *Ex parte Young*, “such officer must have some connection” with enforcement “by virtue of *his* office.” 209 U.S. at 157 (emphasis added); *see also Whole Woman's Health*, 595 U.S. at 45 (holding that some “defendants f[e]ll within the scope of *Ex parte Young*'s historic exception to state sovereign immunity” based upon their connection to S.B. 8 while relief against others was “foreclose[d]”). *Ex parte Young* “rests on the premise” that “a federal court command[ing] a state official to do nothing more than refrain from violating federal law” does not violate a state's sovereign immunity. *Stewart*, 563 U.S. at 255. This has always required an analysis of the defendant's specific role in enforcement or else it would merely be an “attempt[] to make the state a party.” *See Ex parte Young*, U.S. at 157–61. So we must address whether the Attorney General's declaration is sufficient to disclaim any intent to enforce the Act.

We have held that the “proper standard” in assessing whether an officer is entitled to Eleventh Amendment immunity is whether his affidavit establishes his “‘unwillingness to exercise [his] ability to prosecute’” a claim against the plaintiffs. *Minn. RFL Republican Farmer Lab. Caucus v. Freeman*, 33 F.4th 985, 992 (8th Cir. 2022) (citation omitted). In a factual attack, like the review of the preliminary injunction in *Freeman*, we “look outside the pleadings to affidavits or other documents” to establish jurisdictional facts by a preponderance of the evidence. *Moss v. United States*, 895 F.3d 1091, 1097 (8th Cir. 2018). In *Whole Woman's Health*, the Supreme Court did just that. When a private citizen defendant “supplied sworn declarations” attesting “he possess[ed] no intention” to enforce the statute, a unanimous Supreme Court held that plaintiffs “[could not] establish ‘personal injury fairly traceable to [defendant's] allegedly unlawful conduct’” and remanded for the claims against this defendant to be dismissed for lack of standing. *Whole Woman's*

Health, 595 U.S. at 48 (citation omitted).¹ This case is similar. The Attorney General’s declaration attests to having “no present intention to commence” enforcement, so MNABC lacks standing to sue, divesting the district court of subject matter jurisdiction. *Auer v. Trans Union, LLC*, 902 F.3d 873, 877 (8th Cir. 2018); see *Yeransian v. B. Riley FBR, Inc.*, 984 F.3d 633, 637 (8th Cir. 2021) (affirming 12(b)(1) dismissal based on a factual attack because plaintiff lacked standing).

MNABC argues that the Attorney General’s declaration does not “override” his statutory obligations. “[S]ome duty in regard to the enforcement” is not enough: *Ex parte Young* also requires the officer to “threaten and [be] about to commence proceedings.” 209 U.S. at 156. By ignoring this “about to commence proceedings” requirement, MNABC’s position effectively collapses the *Ex parte Young* exception to require only “some connection with the enforcement” of the Act.

Amicus refines MNABC’s argument, asserting that the imminence of enforcement proceedings is irrelevant at the motion to dismiss stage. See *Verizon Md., Inc. v. Pub. Serv. Comm’n of Md.*, 535 U.S. 635, 645 (2002) (“In determining whether the doctrine of *Ex parte Young* avoids an Eleventh Amendment bar to suit, a court *need only* conduct a ‘straightforward inquiry into whether the complaint alleges an ongoing violation of federal law and seeks relief properly characterized as prospective.’” (quotation omitted) (cleaned up)); *Whole Women’s Health*, 595 U.S. at 45 (official “who *may* . . . take enforcement actions” is proper *Ex parte Young* defendant (emphasis added)). This is true for facial attacks on jurisdiction where “the non-moving party receives the same protections as it would defending against a motion brought under Rule 12(b)(6).” *Carlsen v. GameStop, Inc.*, 833 F.3d 903,

¹Although this defendant was a private individual, the Fifth Circuit had held that his appeal was “inextricably intertwined” with the state defendants’ Eleventh Amendment immunity claims. *Whole Woman’s Health v. Jackson*, 13 F.4th 434, 447 (5th Cir. 2021) (per curiam). Before the Supreme Court, “no one contest[ed] this decision.” *Whole Woman’s Health*, 595 U.S. at 48. As the Eleventh Amendment provided appellate jurisdiction and the Supreme Court analyzed his defense in the same manner as other state defendants, we find the law apposite for a state officer.

908 (8th Cir. 2016) (citation omitted); *see also Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (plaintiffs must only plead “sufficient factual matter, accepted as true, to ‘state a claim to relief that is plausible on its face’” (citation omitted)). The same is not true for factual attacks where we “consider[] matters *outside* the pleadings.” *Carlsen*, 833 F.3d at 908 (emphasis added). A defendant supplying a declaration is relevant to whether plaintiffs have standing.

We reverse and remand with instructions to dismiss with prejudice the claims against the Governor and Commissioner and to dismiss without prejudice the claim against the Attorney General.

LOKEN, Circuit Judge, dissenting.

This is a pre-enforcement action by private parties to enjoin the Minnesota Governor, Attorney General, and Commissioner of the Department of Labor and Industry (the Commissioner) from enforcing the Employer-Sponsored Meetings or Communication Act, Minn. Stat. § 181.531, an anti-captive audience law that prohibits Minnesota employers from discharging or otherwise penalizing an employee who declines to attend or participate in an employer-sponsored meeting or communication “to communicate the opinion of the employer about religious or political matters,” as broadly defined. Under the Act, private individuals may bring a civil action to enforce its provisions, and the Attorney General and the Commissioner have independent enforcement authority. During a speech at a public employees convention in August 2024, the Governor stated, “We banned those damn captive-audience meetings for good in Minnesota. Last time I said that at a union meeting, they sued me over it. . . . We’re going to continue to ban those meetings.” Plaintiffs claim the Act regulates employer speech in violation of the First Amendment and is preempted by the federal National Labor Relations Act. Defendants argue they are entitled to Eleventh Amendment sovereign immunity.

As the court acknowledges, this interlocutory appeal turns on whether the “narrow exception” to Eleventh Amendment immunity that the Supreme Court

adopted in *Ex parte Young* applies to permit plaintiffs to seek a federal court order preventing the defendant executive officials from enforcing a state law that is contrary to federal law. Under prevailing Supreme Court authority, the answer to that difficult question turns on whether each official has “some connection with the enforcement” of the Act and has threatened or is about to commence enforcement proceedings. 209 U.S. 123, 156-57 (1908). See *Whole Woman’s Health v. Jackson*, 142 S. Ct. 522, 535-36, 544 (Roberts, C.J., concurring in the judgment and dissenting in part), 545 (Sotomayor, J., concurring in the judgment in part and dissenting in part). This is a complex, fact-intensive inquiry. In *Jones v. Jegley*, 947 F.3d 1100, 1103 n.2 (8th Cir. 2020), we concluded “a ‘strong enough’ connection” to enforcement was shown. In *Minnesota RFL Repub. Farmer Labor Caucus v. Freeman*, 33 F.4th 985, 992 (8th Cir. 2022), we concluded the defendants’ showing that they had not enforced or threatened to enforce the statute at issue and affidavits stating they have no present intention to commence enforcement proceedings were sufficient to entitle them to immunity.

The district court ruled from the bench at the end of a lengthy hearing on defendants’ motion to dismiss. The transcript of that hearing, RDoc 62, was filed September 20, 2024. After correctly stating the above-summarized standard for applying the *Ex parte Young* exception -- that each defendant has an adequate connection to enforcing or threatening to enforce the Act -- the court rejected the broad conflicting contentions of plaintiffs and the three defendants, denied plaintiffs’ request that the court *sua sponte* grant summary judgment in their favor, and emphasized that further developments as the case progresses, including discovery, could change the landscape and cause the applicability of the *Ex parte Young* exception to be re-appraised. On the record before it, the court then concluded:

-- the Governor’s authority to appoint and remove the Commissioner, and his speeches saying if you violate the law you will go to jail, “evinced a commitment to enforcing the law and a threat of enforcing the law that is unique among all the cases I could find,” a “robust tie to threatening to enforce the law;”

-- the Commissioner has an adequate connection to enforcing or threatening to enforce the Act because “the statute is replete with examples of things the commissioner does in support of enforcement of this law;” and

-- the Attorney General “actually has enforcement ability;” he “has taken the least action but has the strongest connection with the enforcement of this statute.”

In this First Amendment case, the court further observed, “there is something unique about public threats to enforce this law” that creates extra concern for chilling protected speech. *Minnesota Chapter of Associated Builders and Contractors v. Timothy James Walz et al.*, File No. 24-cv-536, RDoc 62, Motion Hearing Tr. 35-44 (D. Minn. Sept. 20, 2024).

In my view, the limited record on defendants’ motion to dismiss fully supports the district court’s analysis and conclusions. Whether the standard of review is *de novo* or abuse of discretion, I would affirm the denial of defendants’ motion to dismiss based on state sovereign immunity for the reasons stated by the district court. Accordingly, I respectfully dissent.
